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February 20, 2025

By: Coleman

An Act relating to the Oklahoma Consumer Protection Act; amending 15 O.S. 2021, Section 754, which relates to exemptions; modifying certain exemption; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 15 O.S. 2021, Section 754, is amended to read as follows:

Section 754. Nothing in the Oklahoma Consumer Protection Act shall apply to:

1. Publishers, broadcasters, printers, or other persons insofar as an unlawful practice as defined in Section 753 of this title involves information that has been disseminated or reproduced on behalf of others without knowledge that it is an unlawful practice;

2. Actions or transactions ~~regulated~~ required or authorized under specific laws or regulations administered by the Corporation Commission or any other regulatory body or officer acting under statutory authority of this state or the United States, or to acts done by retailers or other persons acting in good faith on the basis

1 of information or matter supplied by others and without knowledge of
2 the deceptive character of such information or matter; and

3 3. The collection of monies denominated as gross receipts tax
4 on mixed beverages, sales tax or use tax, or asserted injuries or
5 damages that are monies that have been collected as, or denominated
6 as, gross receipts tax on mixed beverages, sales tax or use tax, and
7 which have been remitted to the Oklahoma Tax Commission or other
8 governmental taxing authority.

9 SECTION 2. This act shall become effective November 1, 2025.

10 COMMITTEE REPORT BY: COMMITTEE ON BUSINESS AND INSURANCE
11 February 20, 2025 - DO PASS
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